

# Dharmendra Kumar Kesarwani v. Purwanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 25 February 2014 · WRIT - C No. - 11851 of 2014 · **Writ disposed; Executive Engineer to consider reconnection application within two weeks.**

## HEADNOTE

A consumer seeking reconnection of a 2009 supply, after paying a provisional bill (an FIR also having been lodged), was relegated to Clause 4.39 of the Electricity Supply Code, 2005. The writ was disposed of with a direction to the Executive Engineer to consider the reconnection application within two weeks of production of a certified copy.

## FACTUAL SUMMARY

The petitioner was given an electricity connection in 2009 by Purwanchal Vidyut Vitran Nigam Ltd. A provisional bill was later raised against him, which he paid; an FIR was also lodged. The connection having been disconnected, he filed a writ petition seeking reconnection of the supply granted in 2009. Counsel for the Power Corporation stated that the petitioner could approach the competent authority, who would decide the application for reconnection.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.39(b)

reconnection application after disconnection

#### HOLDING

A grievance seeking reconnection of a disconnected supply, including where a provisional bill has been paid and an FIR lodged, is to be redressed under Clause 4.39 of the Electricity Supply Code, 2005, by the competent authority considering the reconnection application; the High Court will not itself grant reconnection on the writ. ¶ 1

**FLAG** Order cites Clause 4.39 generally, without specifying sub-clause (b).

## PRINCIPLE TAGS

**relegate-to-statutory-remedy** A consumer seeking reconnection of a 2009 supply, after paying a provisional bill (an FIR also having been lodged), was relegated to Clause 4.39 of the Electricity Supply Code, 2005.. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER RECONNECTION WAS DUE ON THE MERITS UNDER CLAUSE 4.39

Left to the Executive Engineer to consider the application. ¶ 1

### NOT DECIDED — EFFECT OF THE FIR ON ENTITLEMENT TO RECONNECTION

¶ 1